

26STCV13556 26STCV13556

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-28

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Case Number: 26STCV13556 Hearing Date: August 28, 2026 Dept: 512

HEARING DATE: Fri., August 28, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Moshfegh

v. Swanston COMPL.

FILED: 04-28-26

CASE NUMBER: 26STCV13556

NOTICE: OK

PROCEEDINGS: MOTION

TO CONSOLIDATE

MOVING PARTY: Plaintiff

Kamyar Moshfegh

RESP. PARTY: Defendant Orville Swanston

MOTION TO CONSOLIDATE

(CCP § 1048)

TENTATIVE RULING:

Plaintiff Kamyar

Moshfegh's Motion to Consolidate is CONTINUED to Monday, September 28, 2026, at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days

prior to the next scheduled hearing, Plaintiff is to file and serve a proper Notice of Motion in both cases sought to be consolidated.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of August 26, 2026 ☐ Late ☒
None

REPLY: None
filed as of August 26, 2026 ☐
Late ☒ None

ANALYSIS:

I.
Background

On April 28, 2026, Plaintiff Kamyar Moshfegh ("Plaintiff") filed the instant action against Defendant Orville Swanston, as an individual and as Trustee of the Orville Swanston Trust, ("Defendant") and Does 1-25, alleging causes of action for Specific Performance for Breach of Contract to Sell Real Property; Damages for Breach of Contract; and Declaratory Relief.

On May 14, 2026, Defendant filed an
Answer.

On May 11, 2026, a Notice of Related Case was filed in this action.

On May 18, 2026, the Honorable Judge Mkrtchyan in Case No. 26STCV11926 ordered the instant action and Case No. 26STCV11926 related within the meaning of California Rules of Court, rule 3.300(a) and ordered Case No. 26STCV11926 to be the lead case. (5/18/26 Order.)

On July 28, 2026, Plaintiff filed the instant Motion to Consolidate (the "Motion").

That same day, Defendant filed a Notice of Non-Opposition to the Motion.

No Opposition was filed.

II.

Procedural
Issues

California Rules of Court, rule 3.350(a)(1) provides that a notice of motion to consolidate must:

(A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;

(B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and

(C) Be filed in each case sought to be consolidated.

(Cal. Rules of Court, rule 3.350(a)(1).)

Here, the Notice of Motion is not filed in each case sought to be consolidated as required by California Rules of

Court, rule 3.350(a)(1)(C) – namely, the Notice of Motion is only filed in the instant action and not in lead Case No. 26STCV11926.

Further, the Court notes the Notice of Motion does not contain all the details outlined in California Rules of Court, rule 3.350(a)(1)(A)-(B).

Thus, the Motion is CONTINUED to allow Plaintiff an opportunity to file and serve a proper Notice of Motion in both cases sought to be consolidated.

III.

Conclusion & Order

Plaintiff Kamyar Moshfegh's Motion to Consolidate is CONTINUED to Monday, September 28, 2026, at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Plaintiff is to file and serve a proper Notice of Motion in both cases sought to be consolidated.

Moving party is ordered to give notice.